

Terms & Conditions

Joey Loveland Web Development Services

Website: joeyloveland.com

Owner: Joey Loveland

1. Introduction

These Terms & Conditions ("Agreement") apply to all services provided by Joey Loveland ("Developer", "I", "me") to any client ("Client", "you"). By engaging my services, requesting work to begin, or accepting a quote, you agree to be bound by this Agreement in full. This Agreement applies to all web design, development, maintenance, consulting, and related digital services unless otherwise agreed in writing.

By commissioning work or using my services, you agree to these Terms & Conditions.

2. Nature of Services

I provide bespoke web development and digital services tailored to each Client's requirements. Services may include website design, front-end and back-end development, integrations, performance optimisation, updates, maintenance, and technical support. All services are provided on a project-by-project basis unless a separate ongoing maintenance agreement is established.

3. Quotes, Pricing & Scope of Work

All pricing is custom and determined based on estimated time, complexity, and scope. There is no fixed price list. Any quote provided is based strictly on the information available at the time and is valid for a limited period where stated.

Each project will include an agreed scope of work. Only work explicitly included in the agreed scope is covered by the quote. Any additional features, revisions beyond agreed limits, or changes in direction will be treated as out-of-scope work and will require a separate quote or written agreement before proceeding.

I reserve the right to adjust timelines or pricing if the project scope materially changes or if incomplete or inaccurate information was initially provided.

4. Deposits & Payment Terms

A non-refundable deposit may be required before work begins. Work will not commence until the agreed deposit is received. The remaining balance will be invoiced according to agreed milestones or upon completion, depending on the project structure.

All invoices must be paid in full by the due date stated. Failure to pay on time may result in suspension of work, withholding of deliverables, or termination of the project. Ownership of all work remains with me until full payment has been received.

Late payments may incur additional fees or interest where applicable.

5. Project Timelines & Client Delays

Any timelines provided are estimates only unless explicitly agreed as fixed deadlines in writing. Timelines are dependent on timely client communication, feedback, and provision of required materials.

If the Client delays providing content, approvals, or feedback for more than a reasonable period, the project timeline will be extended accordingly. I will not be held responsible for delays caused by the Client or third parties.

6. Revisions & Changes

Each project includes a reasonable number of revisions as agreed in the project scope. A revision refers to minor adjustments within the originally agreed direction of the project.

Any changes that alter the structure, functionality, or direction of the project are not considered revisions and will be treated as new work. Additional revisions beyond the agreed allowance may incur additional charges.

All change requests must be submitted in writing.

7. Client Responsibilities

The Client agrees to provide all necessary content, assets, approvals, and information required to complete the project in a timely manner. The Client is responsible for ensuring that all materials provided are legally owned or properly licensed.

The Client is also responsible for reviewing work and providing consolidated feedback within reasonable timeframes. Delays in communication may affect delivery timelines and overall project progress.

8. Acceptance of Work & Sign-Off

Work will be considered accepted when the Client confirms approval in writing or begins using the delivered website in a live environment. Once a stage or project is approved, any further changes will be treated as new work and billed accordingly.

The Client is responsible for thoroughly reviewing all work before approval.

9. Maintenance & Ongoing Services

Optional maintenance services may be provided on a monthly or recurring basis. Maintenance may include updates, bug fixes, backups, monitoring, and general support.

Maintenance fees are agreed individually and are not fixed. Either party may cancel maintenance services with reasonable written notice. No guarantees are made regarding response times unless explicitly agreed in a separate support agreement.

10. Hosting, Domains & Third Parties

Unless explicitly agreed, hosting, domain registration, and third-party services remain the responsibility of the Client. I am not responsible for downtime, data loss, or issues caused by third-party providers.

Where I assist with setup, the Client retains full ownership and responsibility for those accounts unless otherwise agreed in writing.

11. Intellectual Property

Upon full payment of all outstanding invoices, ownership of the final delivered website transfers to the Client unless otherwise agreed. I retain the right to display completed work, screenshots, and descriptions of the project in my portfolio or marketing materials unless the Client requests otherwise in writing prior to project completion.

Third-party assets (including fonts, plugins, frameworks, or libraries) remain subject to their respective licences.

12. Liability & Disclaimers

I will use reasonable skill and care in delivering services but do not guarantee that websites will be error-free, uninterrupted, or compatible with all future systems or browsers.

To the maximum extent permitted by law, I shall not be liable for any indirect, incidental, or consequential damages, including loss of profit, revenue, data, or business opportunities arising from the use or inability to use the delivered services.

The Client agrees that use of the services is at their own risk.

13. Indemnity

The Client agrees to indemnify and hold harmless the Developer against any claims, damages, losses, or legal fees arising from materials supplied by the Client, misuse of the website, or breach of these Terms.

14. Termination

Either party may terminate a project by providing written notice. The Client agrees to pay for all work completed up to the termination date, including any work in progress.

In the event of termination, no further work will be delivered until all outstanding balances are paid in full. Deposits are non-refundable.

15. Force Majeure

I shall not be held liable for delays or failure to perform services due to events outside of my reasonable control, including but not limited to illness, technical failures, internet outages, natural disasters, or third-party service disruptions.

16. Confidentiality

Both parties agree to keep confidential any sensitive business, technical, or personal information disclosed during the course of the project, unless required by law or agreed otherwise in writing.

17. Non-Solicitation

The Client agrees not to directly solicit or hire me for employment outside of agreed project work during the project and for a reasonable period after completion without written agreement.

18. Governing Law

This Agreement shall be governed by and interpreted in accordance with the laws of England and Wales.

19. Entire Agreement

This document constitutes the entire Agreement between the parties and supersedes any prior discussions or understandings. Any changes must be agreed in writing.

20. Acceptance

By commissioning work, approving a quote, or making payment, the Client confirms they have read, understood, and agreed to these Terms & Conditions in full.

Joey Loveland
joeyloveland.com